TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T. D. 53777]

PART 1—CUSTOMS DISTRICTS AND PORTS

HOURS OF BUSINESS

1. Section 1.8 (d), Customs Regulations, is hereby amended to read as follows:

(d) Each customs office shall be open for the transaction of general customs business on all state and local holidays occurring on days other than Saturdays, Sundays, and national holidays. If a state or local holiday interferes with the performance of work in a customs office by any customs employee or employees, the principal field officer may request approval of the Commissioner of Customs to excuse such employees from duty without charge to leave.

(R. S. 161, 251, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 66, 1624)

2. Footnote 7 to § 1.8 is amended by inserting "(E. O. No. 10358, June 9, 1952)" in place of "(E. O. No. 1076, May 22, 1909)".

[SEAL] RALPH KELLY,
Commissioner of Customs.

Approved: April 12, 1955.

H. CHAPMAN ROSE,
Acting Secretary of the Treasury.

[F. R. Doc. 55-3253; Filed, Apr. 19, 1955; 8:53 a. m.]

[T. D. 53780]

PART 10—ARTICLES CONDITIONALLY FREE, SUBJECT TO REDUCED RATE, ETC.

GOVERNMENT IMPORTATIONS; FREE ENTRY

For the purpose of prescribing the procedure and requirements for free entry of source materials purchased abroad as provided for by section 161 (1), Atomic Energy Act of 1954 (42 U. S. C. 2201 (1)), the following amendments are made to §§ 10.103 and 10.104 of the Customs Regulations.

1. Section 10.103 is amended by striking out "and" before "section 602 (d) (6)" and by inserting "and section 161 (1), Atomic Energy Act of 1954 (42 U. S. C. 2201 (1))[98a]," before "such importations", and by adding a new footnote 98a following footnote 98, reading as follows:

[98a] "In the performance of its function the Commission is authorized to—

* * * * *

"(1) secure the admittance free of duty into the United States of purchases made abroad of source materials, upon certification to the Secretary of the Treasury that such entry is necessary in the interest of the common defense and security;" (42 U. S. C. 2201 (1)).

2. Section 10.104 is amended as follows:

a. The headnote is amended to read:

§ 10.104 *Importations by the Departments of the Army, Navy, and Air Force, the General Services Administration, and the Atomic Energy Commission.* * * *

b. The first sentence of paragraph (a) is amended to read: "Shipments consigned to the Department of the Army, the Department of the Navy, the Department of the Air Force, the General Services Administration, the Atomic Energy Commission, or other party acting for the Atomic Energy Commission, or to an officer or official of any such agency in his official capacity, shall be regarded for purposes of this section as shipments the immediate delivery of which is necessary within the purview of section 448 (b), Tariff Act of 1930."

c. Paragraph (c) is amended by renumbering subparagraph (3) as subparagraph (4) and adding a new subparagraph (3) reading as follows:

(3) Collectors may admit materials free under section 161 (1), Atomic Energy Act of 1954 (42 U. S. C. 2201 (1)), only upon receipt from the Atomic Energy Commission of a certificate specifically identifying the shipment of such materials and executed in the following form by a duly authorized official of the Atomic Energy Commission.

I certify to the Secretary of the Treasury that the above-described materials are source materials purchased abroad, the admittance of which is necessary in the interest of the common defense and security, in accordance with section 161 (1) of the Atomic Energy Act of 1954 (42 U. S. C. 2201 (1)).

(Name)

(Title, who has been authorized to execute free-entry certificates for the Atomic Energy Commission)

d. The citation of authority for § 10.104 is amended to read as follows:

(Sec. 12, 62 Stat. 26, sec. 448 (b), 46 Stat. 714, 38 Stat. 399, sec. 602 (d) (6), 63 Stat. 401, 68 Stat. 948; 5 U. S. C. 219b, 626e, 19 U. S. C. 1448 (b), 34 U. S. C. 568, 40 U. S. C. 474 (6), 42 U. S. C. 2201 (1))

(R. S. 161, 251, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 66, 1624)

[SEAL] RALPH KELLY,
Commissioner of Customs.

Approved: April 13, 1955.

H. CHAPMAN ROSE,
Acting Secretary of the Treasury.

[F. R. Doc. 55-3254; Filed, Apr. 19, 1955; 8:53 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 1123]

ALASKA

PARTIAL REVOCATION OF EXECUTIVE ORDERS NO. 5289 OF MARCH 4, 1930, NO. 1194 OF APRIL 26, 1910, NO. 1974 OF JULY 2, 1914 AND THE EXECUTIVE ORDER OF MAY 4, 1907

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 5289 of March 4, 1930, and the unnumbered Executive Order of May 4, 1907 reserving public lands in Alaska for educational purposes, are hereby revoked so far as they affect the following described lands:

EXECUTIVE ORDER NO. 5289

KARLUK

Lands described in U. S. Survey No. 2030.

The area described which contains 0.35 acre, is withdrawn by Public Land Order No. 128 of May 22, 1943.

EXECUTIVE ORDER OF MAY 4, 1907

TANANA

At the junction of the Tanana and Yukon Rivers, latitude 65° longitude 152°, beginning at Corner No. 1 of U. S. School Reserve which is identical with Corner No. 1 of U. S. Survey No. 1107; thence N. 79° 44' E., 1.21 chains to Corner No. 2; N. 10° 16' W., 1.25 chains to Corner No. 3; S. 79° 44' W., 1.21 chains to Corner No. 4; S. 10° 16' E., 1.25 chains to Corner No. 1, the place of beginning.

The area described contains 0.18 acre.

2. Executive Orders No. 1194 of April 26, 1910, and No. 1974 of July 2, 1914, reserving certain public lands in Alaska for use of the Bureau of Education for educational purposes, are hereby revoked so far as they affect the following described lands:

EXECUTIVE ORDER NO. 1194

UGASHIK

Beginning at Corner No. 1, a stake set in the ground, thence in a northerly direction 700 feet to Corner No. 2; thence in a westerly direction 900 feet to Corner No. 3; thence in a southerly direction 700 feet to Corner No. 4; thence in an easterly direction 900 feet to Corner No. 1, the place of beginning.

The area described contains 14.50 acres.

EXECUTIVE ORDER NO. 1974

TANANA

A small tract lying within the survey of the Protestant Episcopal Mission Reserve and adjoining the present Tanana School Reserve on its west line; beginning at a stone marked for Corner No. 1, from which the Corner No. 4 of said Mission survey bears S. 58° 53' W., 23.67 chains distant; running thence S. 79° 44' W., 4 feet to a post; thence N. 10° 16' W., 120 feet to a post; thence N. 79° 44' E., 4 feet to a post; thence S. 10° 16' E., 120 feet to point of beginning. Latitude 65° 8' N., longitude 152° 00' W.

The area described contains 0.01 acre. (U. S. Survey No. 1107.)

At 10:00 a. m. on the 35th day after the date of this order the unappropriated, unreserved, unsurveyed public lands affected by this order shall be opened to settlement under the Homestead Laws or, if nonmineral in character, under the Alaska Home Site Act of May 26, 1934 (48 Stat. 809; 48 U. S. C. 461), or the Small Tract Act of June 1, 1938 (52 Stat. 509; 43 U. S. C. 682a) and to those forms of appropriation only by qualified veterans of World War II for whose services recognition is granted by the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, and by other qualified persons entitled to